HOMEPAGE

Slogan:
For Nepalese Indigenous Women,
By Nepalese Indigenous Women

Who we are:
Indigenous Women Legal Awareness Group (INWOLAG) is a non-governmental, non-profit, and non-political organisation established on 19 August 2000 (3 Bhadra 2057 B.S.) by a group of seven Indigenous women lawyers committed to protecting and promoting the dignity, rights, and well-being of Indigenous communities, particularly women, in Nepal.

INWOLAG was established for Indigenous women and girls, recognising the fact that national laws and legal systems often overlooked the distinct social, cultural, and linguistic traditions of Indigenous communities.

Positioning itself as a trailblazing Indigenous women's rights organization, our vision is to build an equitable society free from discrimination and violence, where the collective rights of indigenous communities are recognised and respected.

What we do:
INWOLAG focuses on advancing Indigenous women's rights and access to justice through a holistic approach combining legal aid, advocacy, awareness, research, and empowerment.

Our core areas of work include:

- Legal Aid (Access to justice)
- Indigenous Collective Rights (Right to Land, Natural Resources and Territories)
- Conservation and Protected Parks
- Gender Just Climate
- Research and Publications

Why we do:
INWOLAG's objectives stems from a deep commitment to justice, equity, and empowerment for Indigenous women and communities long marginalised by Nepal's legal and socio-political structures.

We aim to:

• Increase access to justice for Indigenous women and girls.
• Eliminate discrimination, exploitation, and violence through awareness and advocacy.
• Uphold Indigenous collecting rights, including land, resources, and traditional knowledge.
• Support community resilience against structural inequalities, gender-based violence, and climate and development impacts.
• Promote Indigenous women's leadership and representation in decision-making processes.

Where we have worked:

INWOLAG has extended its work across 40 districts in all seven provinces of Nepal, touching upon regions with a high concentration of Indigenous populations and significant human rights challenges.

(Map Photo)

OUR PARTNERS (Logos in drive):
https://drive.google.com/drive/folders/1_HtyuQ2AK6y5Hx-5oeHGilhuJ-GhVHnF

NFDIN
TEWA
FWLD
Mamacash
FIMI
RRI
NGO Forum on ADB
Coalition for Human Rights in Development
AIPP
Women's Fund Asia (WFA)
Global Greengrants Fund (GGF)
Global Alliance for Green and Gender Action (GAGGA)

TEAM
Core Team (YET TO UPDATED)

- Adv. Indira Kumari Shreesh (Founder/ Chairperson)

Advocate Indira Kumari Shreesh is a senior legal practitioner and human rights scholar with over two decades of experience in advancing Indigenous peoples' rights, gender justice, and environmental governance. She holds a Master of Laws (LL.M.) in Human Rights and Gender Justice from Kathmandu School of Law, Purbanchal University, where she specialized in constitutional law, international human rights law, and legal

protections for marginalized and Indigenous communities.
She further completed a one-year postgraduate degree in Indigenous Studies and Development (MIED) from Kathmandu University, enhancing her interdisciplinary expertise in Indigenous land tenure systems, conservation governance, traditional livelihoods, and sustainable development policy.

Her academic and research focus includes Indigenous land rights, conservation-induced displacement, hydropower and infrastructure impacts, livelihood protection, and intellectual property rights related to Indigenous knowledge and women's rights.

Advocate Shreesh served as a Legal Fellow with the World Forum for Access to Justice (2013–2017) and was selected for the U.S. Government's International Visitor Leadership Program (IVLP). She is a practicing advocate at the Supreme Court of Nepal and the Founder and Chairperson of the Indigenous National Women Lawyers Association Group (INWOLAG).

- Adv. **Uma Tamang** (Founder/ Vice Chairperson)

Uma Tamang is an Advocate and a dedicated human rights defender who has been working in the field of women's and children's rights for over two decades.

She holds a Master's degree in Sociology from Trichandra College, Tribhuvan University, a Bachelor of Law from Nepal Law Campus, Tribhuvan University, and a Master's in Indigenous Education and Development from Kathmandu University. Her academic background has strongly supported her work in legal practice, social justice, and advocacy.

Since 2001, she has worked with Maiti Nepal as a Senior Legal Officer, trainer, and advocate, providing legal aid, leading awareness programs, and supporting survivors of human trafficking and gender-based violence.

Over the years, she has held several important roles in national networks and committees. She is a member of the National Coordinating Committee for Controlling Human Trafficking (NCCHT), formed by the Ministry of Women, Children, and Senior Citizens, representing Maiti Nepal. She also serves as the General Secretary of the National Network for Safe Migration (NNSM) and as an advisor to Bishwas Nepal.

In addition, she has contributed to multiple organizations as an executive board member, including the Legal Aid and Consultancy Centre (LACC), Bikalpa Gyan Tatha Bikas Kendra (Bikalpa Nepal), and CWAD (Center for Women's Awareness and Development), and is a member of the Inter-Generation Feminist Forum (IGFF). She is also a member of the Human Rights Treaty Monitoring Coordination Committee (HRTMCC), where she engages in policy-level discussions and advocacy.

Uma Tamang has extensive experience in legal aid, rescue operations, and cross-border anti-trafficking work. She has been directly involved in more than 200 cases related to human trafficking and sexual violence, including high-risk rescue missions across the Nepal–India border. One notable operation includes the rescue of several trafficked girls from a brothel in Agra, India.

Beyond rescue work, she has played a key role in securing citizenship and legal identity for orphaned children, helping more than 60 children obtain citizenship and essential documents. She also provides free legal aid to women facing domestic violence and other forms of abuse.

Her work extends to policy advocacy and legal reform. As a founding member of INWOLAG, she has contributed to lobbying efforts and policy reviews from a Gender Equality and Social Inclusion (GESI) perspective, including engagement with laws such as the Legal Aid Act, Civil Code, and Criminal Code. She has also participated in national-level policy dialogues and action plans, including the National Plan of Action against human trafficking.

Uma Tamang has participated in various international and regional trainings across Asia and Europe and has worked closely with police, government officials, judiciary members, and civil society organizations to conduct gender sensitization and anti-trafficking programs.

She has also contributed to research, publications, and advocacy on issues such as gender-based violence, climate change, Indigenous rights, and Free, Prior, and Informed Consent (FPIC). Additionally, she has been involved in the formation and strengthening of Indigenous Women Human Rights Defenders (IWHRDs) living in and around the Conservation and Protected areas of Nepal.

In recognition of her contributions, she was awarded the Nepal Women Leaders Award (2018) by CMO Asia and the CNI Award (2022) by the Confederation of Nepalese Industries.

Through her long-standing commitment, Uma Tamang continues to work toward justice, dignity, and rights for women, children, and marginalized communities in Nepal.

Adv. Kaushila Rai (Founder/ General Secretary)

- Kaushila Rai is an advocate and social activist with over 25 years of experience in Nepal's legal sector. She describes herself as a "social engineer," reflecting her long-standing commitment to creating meaningful change through law, advocacy, and community engagement. She is a founding member of the Indigenous Women Legal Awareness Group (INWOLAG) and currently serves as its General Secretary, where she works closely on advancing the rights of Indigenous women.
- Her work focuses on human rights, gender justice, and the empowerment of marginalized communities, with a strong emphasis on advocacy for Indigenous Peoples' (IPs) women. She has been actively involved in policy analysis, including work related to CEDAW, and has contributed to research on land rights and the development of a Free, Prior, and Informed Consent (FPIC) manual. Through these efforts, she supports more inclusive and rights-based approaches to development.
- Kaushila has participated in various national and international training programs and is committed to sharing knowledge at the community level. She continues to raise awareness and advocate for the voices and rights of those often left unheard.
- Previously, she served as Treasurer of the High Court Bar Association (Patan). She holds an LL.M. in Human Rights and Gender Justice and a Master's in Indigenous Education Development (MIED) from Kathmandu University.
- Her professional expertise includes certifications in court-referred mediation, trial advocacy, and Training of Trainers (TOT) for civil and criminal codes. She is a licensed member of the Nepal Bar Council (No. 4683) and continues to actively practice law.

- **Adv. Ritu Thapa Magar (Founder/ Treasurer)**

Advocate Ritu Thapa is an Indigenous lawyer, human rights advocate, and trainer with over two decades of experience advancing the rights of Indigenous Peoples, particularly women and girls in Nepal.

Her work focuses on strengthening access to justice, addressing violence against women (VAW), and advancing Indigenous Peoples' rights, including Free, Prior, and Informed Consent (FPIC), land rights, and equitable development. She has been actively engaged in legal advocacy for Indigenous communities affected by large-scale development projects, including the Tanahu Hydropower Project. She also has extensive experience working on conservation and protected areas, with a focus on Indigenous Peoples' rights, Indigenous Women Human Rights Defenders, and access to justice in national park contexts.

Advocate Thapa holds a Master's degree in Law from the University of Pune and a Master's in Indigenous Education and Development from Kathmandu University. She is an alumna of the Human Rights Advocates Program (HRAP) and Indigenous Studies at Columbia University, New York, and has participated in international leadership programs, including the East-West Center's Asia Pacific Leadership Program. She is a Distinguished Humphrey Fellow in Indigenous Peoples' Rights.

She has contributed to research, publications, and policy advocacy on issues such as gender-based violence, climate change, and Indigenous women's rights. She was recognized as the second top-performing woman in the Advocate License Examination by the Nepal Bar Council and is a recipient of the Nainoa Thompson Award from the East-West Center, University of Hawai'i.

Advocate Thapa continues to engage in national and international platforms to promote inclusive, accountable, and rights-based approaches to justice and development

- Adv. Mon Kumari Rai (Board Member)
  Mon Kumari Rai has completed Bachelor in Law from Tribhuvan University, Nepal. She is one of the serving board members of INWOLAG. She has been actively working and an activist for promoting rights of women and indigenous community through advocacy, free legal aid and training. She engages in regular awareness programs centered around indigenous women regarding their rights and gender violence.

- Adv. Jayanti Rai (Board Member)

- Adv. Rita Sherpa (Board Member)

Advisory Council:

- Adv. Sarada Subba (Founder)
  Sarada Subba is the founding chairperson of INWOLAG. She is a human right lawyer. She has done her Masters in Human Right and Gender Justice from KSL. She has been actively working as an activist for promoting rights of women and indigenous community through advocacy, free legal aid and training. She actively advises the board on their activities and engages in the organization's programs.

- Adv. Kshatra Kumari Gurung (Founder)

- Adv. Basundhara Thapa (Founder)

- Yasokanti Bhattachan

Focal Person:

- Gita Thapa (Tanahu)

- Punam Shrestha (Banke)

- Kamala Bahik (Rupandehi)

- Anita Rai (Koshi)

- Phulmati Mahato (Kanchanpur)

ABOUT US

Mission

To create an egalitarian and prospective society where there is no domination and discrimination based on race, caste, ethnicity, language, religion, culture, gender, class, and region.

Vision

To create a condition where indigenous women are recognized, and the language and culture of indigenous peoples are respected.

Objectives

- To increase access to justice to indigenous women and children by providing legal aid service, legal counseling, legal advocacy and mediation to indigenous women and children to secure their legal and human rights.
- To conduct investigation, study, and legal research on various issues of indigenous peoples with a focus on indigenous women and children, including international laws relating to indigenous women and children.
- To advocate for the socioeconomic, cultural, educational, and intellectual agenda and issues of indigenous women and children.
- To raise legal awareness among indigenous peoples and marginalized communities to eliminate all forms of discrimination, exploitation, and violence against indigenous women and children through publication, partnering media, conducting trainings, workshops, interaction, seminars, symposia, dialogues and talk programs on indigenous women's and children's issues.
- To monitor incidences of human rights violation, with a focus on violence against indigenous women and children, and carry out field investigation, if necessary.
- To work for effective implementation of international standards of human rights with a focus on The United Nations Declaration on the Rights of Indigenous Peoples (UNDRIP), Convention 169 – Indigenous and Tribal Peoples Convention, 1989 and Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW).
- To work for political rights of indigenous women especially on the representation of indigenous women at various levels of state from federal to local level.

—----------

INWOLAG in Media:

https://www.youtube.com/watch?v=ahGEuSm2sZ8
https://www.youtube.com/watch?v=gcCUzUYFtQ8
https://www.youtube.com/watch?v=14v3lVDglBU
https://www.youtube.com/watch?v=5LycovAb6Go
https://www.youtube.com/watch?v=6h-iDbUuRAU
https://www.youtube.com/watch?v=kekdYDBBacU
https://www.youtube.com/watch?v=no0g4BdSwGc

—----------

THEMATIC WORKS

- **LEGAL AID (ACCESS TO JUSTICE)**

INWOLAG provides legal awareness, counseling, litigation, and psychosocial services to Indigenous women survivors of violence and rights violations, all for free. As a leading advocate

for Indigenous women's rights, we bridge access to justice and empowerment at both the local and national levels.
Public Interest Litigation

Activities/ Projects:

- **INDIGENOUS COLLECTIVE RIGHTS**

INWOLAG promotes the collective ownership, identity, and self-determination of Indigenous communities by safeguarding their ancestral lands, cultures, and traditions.
With a strong emphasis on the principle of Free, Prior and Informed Consent (FPIC), we ensure that Indigenous peoples have the right to make decisions about their lands, territories, and resources before any development or policy is implemented.

Right to Self-determination of Indigenous Communities

Activities/ Projects:

- **GENDER JUSTICE CLIMATE**

INWOLAG provides livelihood training programs for Indigenous women to help them mitigate and adapt to the impacts of climate change. These trainings equip women with practical skills and sustainable practices that enhance both environmental resilience and economic independence.

Activities/ Projects:

Principal Investigator (PI): Kamal Thapa, PhD**RESEARCH AND PUBLICATIONS**

Research and documentation have remained central to INWOLAG's strategy of evidence-based lobby and advocacy. Over the duration of 25 years, the organisation led multiple research projects that documented the impacts of development projects on Indigenous Peoples, amplified Indigenous women's voices, and provided data for rights-based
Policymaking.

- Exploring Sustainability in Trophy Hunting Practices at Dhorpatan Hunting Reserve, Nepal: A Balancing Act? (2024)

Coordinating Principal Investigation: Adv. Indira Kumari Shreesh

Abstract
This study, conducted between March and August 2024, assesses the sustainability of the Dhorpatan Hunting Reserve (DHR) by analyzing its socioeconomic, cultural, and ecological effects.It explores the conditions and perceptions of Indigenous Peoples and Local Communities (IPLCs), analyzes trends in the Naur population and land cover changes, and assesses the financial viability of the reserve's trophy hunting program. Data was collected from 293 families using a multistage sampling approach, stratified by settlement location, ethnicity, and socioeconomic status. The results reveal that the average per capita income in the area is USD $786, with significant income disparities between IPLCS. Over a 42-year period, the Naur population declined by over 50%, accompanied by significant changes in sex and recruitment ratios. Despite trophy hunting generating revenue, the earnings fell short of covering the management costs, with a deficit averaging USD $322, 508 annually between 2017 and 2023. Land cover changes from 1990 to 2019 showed a decline in forests and grasslands, while barren and shrub land areas expanded. Climate trends indicate regional variations in temperature and rainfall, with the Dhaulagiri region experiencing a slight increase in both. Respondents largely attributed pasture changes to the climate crisis and DHR's conservation measures, with over 90% blaming trophy hunting practices for the decline in the Naur populations. A majority of respondents advocated for the revival of customary practices to restore the DHR ecosystem. The study reveals tensions between conservation policies and the rights of IPLCs, exacerbating the "Tragedy of the Commons." Climate change, declining wildlife, and inadequate trophy hunting revenues further strain local livelihoods. The findings emphasize the urgent need for inclusive, indigenous-driven conservation strategies that balance cultural heritage with ecological sustainability to address these challenges effectively.

Keywords: Cultural, Dalits, DHR, Ecological, IPLCs, Naur, Socioeconomic, Trophy hunting.
—----------

- Testimonies of Tanahu Hydropower affected Magar Indigenous Women (Jan 2025)

Author: Adv. Ritu Thapa

The Tanahu Hydropower Project (THP) in Nepal has become a pivotal example of the profound challenges Indigenous communities face when development initiatives proceed without genuine respect for their rights, cultures, and ways of life. As we examine the experiences of the Magar community, these testimonies reveal the depth of harm caused by development that overlooks the principles of Free, Prior, and Informed Consent (FPIC) and other Indigenous safeguards. Although national and international policies exist to protect Indigenous rights, the lived experiences of the Magar people show a stark gap between the promise of these protections and their actual implementation.

Voices from the Magar community, such as those of Bibhadevi Thapa, Lilmaya Thapa, Yam Kumari Rana, and Gita Thapa, highlight the irreplaceable value of their ancestral lands. For generations, these lands have provided them with sustenance, cultural spaces, and spiritual meaning. Here, they have gathered medicinal plants, performed sacred ceremonies, and honored their ancestors in sacred cremation sites. These lands embody their history, spirituality, and collective identity.

Yet, the THP threatens to dismantle this deeply rooted connection to land. As boundaries are marked, lands submerged, and access destroyed, the Magar people face losing not only a home but the heart of their heritage. Traditional livelihoods, such as fishing and forest gathering, have been disrupted. Ritual practices and culturally significant sites are at risk of being submerged, severing ties to ancestral traditions that have been upheld for centuries. Despite their attempts to voice their opposition, their concerns have largely been disregarded, and compensation inconsistencies have only added to their sense of marginalization.

In this research, the accounts of these women speak to the resilience of a community struggling to assert its right to self-determination. Their stories are reminders that the right to self-determination is not an abstract concept; it is a vital principle that enables Indigenous communities to define their own political, cultural, and economic paths. These testimonies are a call to recognize the invaluable legacy of Indigenous lands and to ensure that the voices of Indigenous communities are not only heard but respected and upheld as development progresses.

Keywords: Right to Self-Determination, Lived Experiences, Resilience, Traditional Livelihoods.
—----------

- Women & Rivers (Beyond Borders) | May 2025

Rivers have historically been central to human civilization, shaping agriculture, livelihoods, culture, and religious practices. However, the combined pressures of globalization, large-scale development projects, and climate change have severely altered their natural flow and health. Once free-flowing rivers that sustained fertile lands and diverse ecosystems are now increasingly degraded due to pollution, dam construction, and erratic rainfall patterns. This has made river rejuvenation an urgent priority, particularly by recognizing and integrating the indigenous knowledge of local and tribal communities—especially women—who have long interacted closely with these ecosystems.

The study aimed to understand the causes behind dying rivers and explore pathways for their restoration while fostering cross-border collaboration between Nepal and India. It focused on indigenous communities living within close proximity to seven river valleys across both countries, using a mixed-methods approach that included surveys, interviews, and participatory research techniques. Findings highlight that rivers remain deeply embedded in daily life, with water primarily used for bathing, irrigation, and cultural practices. However, communities have observed alarming changes such as water scarcity, pollution, reduced fish populations, and difficulties in sustaining traditional livelihoods.

The research reveals that human interventions, especially dam construction, deforestation, and unregulated development, have disrupted river systems, leading to erosion, flooding, and declining biodiversity. These changes have caused repeated displacement of riverine communities, loss of land and livelihoods, and increased migration. Traditional community-based river management systems have been weakened, often replaced by political conflicts and lack of accountability among governing bodies. Women, despite being central to water management at the household level, remain marginalized in decision-making processes and disproportionately bear the burden of environmental and social crises.

Keywords: Gender and Water, Indigenous Knowledge, Riverine Communities, Community-based river governance, Water Security.

—----------

- Beyond the Dam: Intangible Loss and Damage to the Magar Indigenous Communities in Nepal | June 2025

This research documents the profound intangible and long-term losses experienced by the Indigenous Magar community affected by the 140 MW Tanahu Hydropower Project on Nepal's Seti River. Using participatory research methods, we captured cultural heritage erosion, identity and language disruption, and undermining Indigenous knowledge systems. The findings reveal that while Nepal pursues hydropower development to meet national energy needs, Indigenous

communities face multi-generational losses that extend far beyond economic considerations. The Seti River represents not merely a natural resource but a sacred entity integral to Magar cultural identity, spiritual practices, and community governance structures. This report highlights the urgent need for development approaches that recognize and protect these irreplaceable cultural assets.

Keywords: Loss and Damage, Intangible Losses, Indigenous Rights Protection, Cultural Asset.

—----------

- Assessing Gender Impacts of Proposed Iron Mining in Jhumlawang, Bhume Rural Municipality-3, East Rukum: A Technical Survey of Indigenous Magar and Dalit Women's Perspectives | May 2025

Author: Adv. Indira Kumari Shreesh
Dr. Kamal Thapa (Consultant)

This study, conducted in March 2025 in Jhumlawang village of Bhume Rural Municipality in East Rukum, Nepal, explores the gendered impacts of a proposed iron mining project, focusing on Indigenous Magar and Dalit women. Using a mixed-methods approach: household surveys, focus group discussions, and key informant interviews, the research highlights the tension between the project's significant economic potential and the community's fragile socioeconomic conditions. Despite the large iron ore reserves, over 83% of households live in poverty and depend heavily on natural resources such as forests and farmland for their livelihoods.

The findings reveal deep-rooted gender inequalities and heightened risks associated with extractive industries. Women have limited access to education, property, and decision-making, and face increased vulnerability to gender-based violence and trafficking. Many expressed fears of losing land, cultural identity, language, and traditional knowledge systems. Environmental concerns were equally significant, with anticipated impacts on water sources, forests, and agricultural land. Notably, awareness of the mining project was extremely low, yet there was a strong demand for Free, Prior, and Informed Consent (FPIC), pointing to serious gaps in transparency and respect for Indigenous rights.

While some potential benefits (such as jobs and infrastructure) were acknowledged, the study emphasises that these depend on equitable and inclusive governance. It recommends enforcing FPIC, ensuring community-led impact assessments, promoting alternative livelihoods, strengthening women's participation in decision-making, and establishing transparent benefit-sharing mechanisms. Overall, the research calls for a rights-based, gender-sensitive approach to mining that prioritizes community voices, protects cultural heritage, and ensures sustainable development.

Keywords: Iron Mining, Gendered Impacts, Alternative Livelihoods, Resource Governance, Extractive Industries.

—----------

- Assessing Socio-Economic, Education, and Perceptions of Indigenous Peoples and Local Communities in and around Dhorpatan Hunting Reserve, Nepal | September 2024

Author: Dr. Kamal Thapa (Conservation Scientist)

This study, conducted from April to June 2024 in the Dhorpatan Hunting Reserve in western Nepal, examined the socioeconomic conditions, education, and conservation perceptions of Indigenous Peoples and Local Communities (IPLCs). Based on data from 293 respondents across Myagdi, Baglung, and East Rukum, the research found that all households depend on agropastoral livelihoods, supplemented by remittances and medicinal plant collection. However, incomes are low and unequal, with Dalits being the most disadvantaged, and traditional livelihoods like sheep farming and fiber production are declining.

Education levels remain modest, with noticeable gender disparities, and traditional institutions are weakening despite continued reliance on customary practices. The study also highlights growing tensions between communities and conservation authorities, including reported harassment and conflicts over wildlife-related damages. Most respondents expressed dissatisfaction with current conservation policies, including opposition to trophy hunting and distrust in government management.

Overall, communities strongly favor greater recognition of their customary practices and increased local control over conservation. The study recommends revitalizing traditional systems, supporting local livelihoods, improving conservation education, and promoting community-led conservation approaches that empower women and marginalized groups for more sustainable and inclusive outcomes.

Keywords: Community-based Conservation, Conservation Governance, Indigenous Peoples and Local Communities (IPLCs), Socioeconomic Inequality.

—----------

- Perception of Indigenous Bote and Tharus on Existing Conservation Approaches in Paithani Village of Chitwan National Park and Buffer Zone -Chitwan, Nepal (2024)

Authors: Dr. Kamal Thapa,
Adv. Indira Kumari Shreesh,
Adv. Mon Kumari Rai

Arzoo Rana Thapa

Abstract

This study, conducted from January to August 2024 in Patihani Village, Chitwan National Park (CNP) and its Buffer Zone, Chitwan District, Nepal, evaluates the perceptions of the Bote and Tharu indigenous peoples regarding conservation approaches in the area. Using semi-structured interviews and cluster sampling, 60 families (30 Bote and 30 Tharu) were surveyed, focusing on socio-economic status, land ownership, and experiences with the park. Results show that the average family size was 4.9, with Bote families being slightly larger. 89% of respondents were female, and 49% were literate.

The majority (78%) did not own registered land, with Bote families owning significantly less than Tharu families. Respondents reported an average annual income of $320, with Bote families earning less than Tharu families. Despite the park's proximity, 81% of respondents were not involved in the buffer zone's management, and most expressed dissatisfaction with the park's policies, citing restricted access to natural resources and the requirement to pay entry fees. A significant proportion (79%) feared the national park, with wildlife interactions, such as with rhinos and crocodiles, leading to economic losses averaging $331 per family annually due to property damage. Many respondents also faced difficulties in accessing relief funds for such losses, particularly Bote families.

The study highlights the socio-economic challenges faced by these indigenous groups, including displacement from ancestral lands, psychological and physical harm, and exclusion from decision-making processes. The findings suggest that current conservation strategies are not adequately addressing the needs and rights of indigenous peoples. The study advocates for the recognition of indigenous laws, increased benefit-sharing, and improved participatory mechanisms to foster better coexistence between the local communities and the national park.

Keywords: Bote, Chitwan, Indigenous rights, National Park, Rhino, Tharu, Tiger,Women.

—----------

- Perception of Indigenous Peoples on Existing Conservation Approaches in Barahakshetra Municipality -11, Koshi Tappu Wildlife Reserve, Nepal (2024)

Authors: Dr. Kamal Thapa
Adv. Indira Kumari Shreesh
Adv. Kaushila Rai
Adv. Uma Tamang

Abstract

This study, conducted in October 2024 in Madhuwan Village within the Koshi Tappu Wildlife Reserve buffer zone in Sunsari District, explores the perceptions of Indigenous Majhi communities toward conservation practices. Based on interviews with 32 households, the findings show low income levels, food insecurity, and moderate literacy, with most households owning land but still facing economic vulnerability. While nearly half of the respondents reported sufficient food for most of the year, a significant portion experienced shortages, highlighting fragile livelihoods.

A large majority (81%) expressed dissatisfaction with the reserve and its buffer zone management, particularly criticizing ineffective benefit-sharing mechanisms and lack of awareness. Human–wildlife conflict remains a major challenge, with wild buffalo, elephants, and boars posing the greatest threats to crops and livelihoods. Accessing compensation for damages is difficult, with most respondents describing the process as complex and unclear. Additionally, many reported broader socioeconomic impacts such as poverty, legal challenges, and psychological stress linked to conservation policies.

Despite these challenges, customary institutions continue to play an important role, with many respondents supporting their formal recognition in conservation governance. The study emphasizes the need for more inclusive and community-centered approaches, recommending the devolution of power to Indigenous communities, integration of traditional knowledge into conservation, capacity-building programs, and collaborative management models. These measures aim to balance environmental protection with the rights, livelihoods, and well-being of local communities.

Keywords: Majhi Community, Wildlife Reserve, Human-wildlife Conflict, Benefit-sharing Mechanisms, Participatory Resource Management

—----------

- Aspiration and realities to imagine violence free lives for Indigenous Women and Indigenous Women with Disabilities: An initial Step towards it | November 2021

Author: Sushila Kumari Thapa Magar

National Indigenous Disabled Women Association (NIDWAN) and the Indigenous Women Legal Awareness Group (INWOLAG) joint initiative, ‘Claiming Our Voices: Beijing+25 Review and Follow-Up,’ engaged with national and global advocacy processes, building on frameworks such as the Fourth World Conference on Women and the Beijing Declaration and Platform for Action (BPfA), which remains a key global roadmap for gender equality.

Positioned within the 25-year review of the BPfA and its evolution into the Generation Equality Forum, this research highlights the urgent need for an intersectional understanding of violence. Indigenous Women and Indigenous Women with Disabilities face disproportionate and compounded risks due to overlapping forms of discrimination based on gender, indigeneity, disability, poverty, and geographic marginalization. Although international frameworks such as the Convention on the Elimination of All Forms of Discrimination Against Women exist, they often inadequately address the specific realities of these groups, particularly in contexts like Nepal where crises further intensify vulnerabilities.

This research serves as an initial yet critical step toward bridging these gaps by generating evidence on the lived realities of violence against Indigenous Women and Indigenous Women with Disabilities in Nepal. It seeks to identify the forms and scale of violence, examine root causes and impacts, and analyze barriers to accessing justice and support systems. By centering lived experiences and strengthening evidence-based advocacy, the study aims to inform more inclusive policies and interventions, ultimately contributing to the broader vision of enabling violence-free, dignified lives for Indigenous Women and Indigenous Women with Disabilities.

Keywords: Social Justice, Feminist Advocacy, Access to Justice, Indigenous Women, Indigenous Women with Disability

—----------

- Baseline Report for Addressing Collective Land in Relation to Land-for-Land Compensation for Land Submerged Affecting Indigenous Peoples Impacted and Victimized by the Tanahu Hydro power Project | 2025

Author: Nanda Kandangwa

This report is a baseline documentation prepared on behalf of the Indigenous Magar community of Tanahu District, Nepal, whose ancestral and collective lands are being submerged by the 140-megawatt Tanahu Hydropower Project dam being built on the Seti River, financed by the ADB, JICA, and EIB at a total cost of USD 505 million. Its reservoir will submerge 7.26 square kilometers of land, displacing over 80,000 people, 56% of whom are Indigenous Magar whose ancestral and collectively managed territories fall directly within the flood zone. The central dispute is that the project's Resettlement Plan refused to recognize unregistered communal Magar land as ancestral territory, effectively excluding it from compensation while offering cash settlements only for privately registered plots.

Affected communities organized themselves into a collective rights committee and filed multiple formal complaints between 2020 and 2022 with the ADB, EIB, and their respective accountability mechanisms, demanding land-for-land compensation, proper valuation of customary land, and respect for Free, Prior and Informed Consent (FPIC). Independent studies

were commissioned and joint resolution meetings were held, but the THP rejected the independent land valuation findings and offered no remedy for unregistered communal land. The situation was further aggravated when local authorities began extracting sand and gravel from within the traditional Magar territory, destroying land and intimidating community leaders without consequence.

This report, prepared in December 2025, documents the legal basis for the community's claims by drawing on ILO Convention No. 169, UNDRIP, ADB's own Safeguard Policies, Nepal's Constitution and Civil Code, and a 2024 Supreme Court directive ordering all tiers of Nepal's government to implement indigenous peoples' rights legislation. Five traditional Magar customary institutions — known as Guth — have jointly declared collective ownership over the affected territory and submitted formal applications for its registration as community property. The report calls on THP, the Government of Nepal, and international financiers to honor these obligations, warning that continued inaction constitutes a violation of both international and domestic law.

Keywords: Indigenous Land Rights, Customary Law, Land for land compensation, Free, Prior and Informed Consent

—----------

- CEDAW General Recommendation 39 on the Rights of Indigenous Women and Girls (2022)- translation in Nepali

With approximately 476 million Indigenous people worldwide, more than half of whom are women, Indigenous women and girls face double discrimination in their daily lives, particularly those living in remote villages and urban areas. The framework is designed to apply to Indigenous women and girls both within and outside of Indigenous territories, recognizing their roles as rights-holders, knowledge-bearers, and transmitters of culture within their communities and families. It also identifies the intersecting causes of discrimination they face, including gender, Indigenous identity, caste, age, language, social and economic status, and HIV/AIDS.

The document outlines the responsibilities of state parties, legislators, and policymakers in addressing discrimination against Indigenous women and girls through a multi-layered lens incorporating gender perspectives, intercultural approaches, and an intersectional framework. It emphasizes that discrimination faced by Indigenous women is deeply structural, embedded in constitutions, laws, policies, and state programs. It calls on states to recognize the multidimensional identities of Indigenous women and girls (shaped by law, health, education, culture, religion, anthropology, economics, and science) and acknowledges that these intersecting

systems of discrimination continuously reinforce one another and must be addressed through coordinated legal and policy mechanisms.

This recommendation addresses the right to self-determination of Indigenous women and girls under Articles 1 and 2 of the convention, affirming their right to freely determine their political status and pursue their economic, social, and cultural development. It stresses that any laws, policies, and administrative actions affecting Indigenous women must be implemented only after genuine consultation with them or their representative organizations. The document also highlights the urgent environmental dimension, noting that Indigenous women and girls are disproportionately harmed by climate change, environmental destruction, biodiversity loss, and resource extraction, and calls on states, businesses, and industries to urgently implement measures to protect clean, safe, and sustainable environments, holding state parties accountable for all forms of violence and injustice inflicted upon Indigenous women as environmental and human rights defenders.

—----------

- Is Nepal's Protected Area System Recognize the Indigenous Peoples and Indigenous Women?
  Review Report on the legislation of the Protected Area System in Nepal (Refugia Indigenous peoples/ women in the protected area system)

- Indigenous Rights in Nepal's Protected Areas: Policy Analysis of the National Parks and Wildlife Conservation Act

Summary

We reviewed current protected area legislation, in particular the National Parks and Conservation Act, 1973 (fifth amendment, 2017), National Parks and Wildlife Conservation Regulation, 1974 (fifth amendment, 2020), Chitwan National Park Regulation, 1974, Wildlife Reserve Regulation, 1978 (first amendment, 1985), Buffer Zone Management Regulation, 1996 and Guideline, 1999, and Shivapuri-Nagarjun National Park Regulation, 2020.

This desk review's goal was to examine whether Nepal's provisional conservation laws now in effect are compatible with the rights of women and indigenous peoples. Additionally, it makes a specific suggestion that legislation supporting indigenous peoples and women to be adopted. We used online technological tools such as https://dnpwc.gov.np/en/regulation/?page=2 to review the aforementioned materials. We used Google Scholar with Publish and Perish from https://publish-or-perish.en.softonic.com/. We download free software from Sci-Hub at

https://sci-hub.hkvisa.net/ whenever needed. Published documents were reviewed when the online materials were not available.

In gist, Nepal's current rules governing protected areas are generally unsuitable for use by indigenous peoples, women, and local communities who reside adjacent to the protected area system. Ironically, as a result of the protected area system, indigenous peoples/women and local communities who have already been oppressed and marginalized by the nation have found refuge in their ancestral land. We urge states and other external actors to implement policies, laws, and resources for indigenous peoples' protected land as defined by indigenous peoples, as well as to support indigenous leadership and create new internal channels for indigenous participation and collaboration. Indigenous peoples would benefit from forming alliances to protect and manage their lands. We also advise the state to connect management priorities with local and larger-scale sociocultural and environmental problems that affect these regions to properly monitor and manage these places. The following are specific recommendations:

1) Indigenous peoples' and women's demands should be taken into account while updating and rewriting existing protected areas laws (acts, regulations, and guidelines).

2) It was critical to implement laws and procedures once Nepal ratified the international covenant and convention.

3) This report, which extends beyond the parameters of the field study, is based on a desk analysis of the law. As a result, it is crucial to carry out a thorough empirical examination based on case studies in protected regions to find out whether park officials have mistreated indigenous peoples, women, and local communities.

4) Because these countries allowed the male migration culture to seek temporary employment overseas, women, particularly indigenous women and the poor are the most susceptible group. Therefore, it is necessary to develop specific rules for the welfare and rights of women, which are impacted by protected area legislation.

5) The protected area system in Nepal should be built on a paradigm of sharing between human populations and the natural world rather than a sphere (isolated model). Therefore, indigenous peoples, women, and local communities near protected areas shouldn't turn into refugees in their ancestral lands or among the natural resources that have coexisted for eons. As a result, the state should formulate and implement policies that are compatible with protecting the environment, indigenous peoples/ women, and local communities,

6) It is critical to amplify the views of indigenous peoples, women, and local communities in the fight to amend the Protected Areas Act. Therefore, the institution has to be strengthened over time.